

26SMCV00127 26SMCV00127

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-18

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CM%2C08%2F18%2F2026

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Case Number: 26SMCV00127 Hearing Date: August 18, 2026 Dept: M

CASE NAME: 15515 Sunset

Blvd LLC, v. the Via De La Paz Association, et al.

CASE NO.: 26SMCV00127

MOTION: Motion

for Leave to Amend to File a First Amended Complaint

HEARING DATE: 8/13/2026

Legal

Standard

If a party

wishes to amend a pleading after an answer has been filed, or after a demurrer has been filed and after the hearing on the demurrer, or if he or she has already amended the pleading as a matter of course, the party must obtain permission from the court before amendment. (CCP §§ 473(a)(1), 576.)

Motions

for leave to amend the pleadings are directed to the sound discretion of the court. "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading . . ." (CCP § 473(a)(1); see CCP § 576.) Policy favors liberally granting leave to amend so that all disputed matters between the parties may be resolved. (See *Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.) Absent prejudice to the adverse party, the court may permit amendments to the complaint "at any stage of the proceedings, up to and including trial." (*Atkinson v. Elk Corp.*

(2003) 109 Cal.App.4th 739, 761 [internal quotes omitted].) Where leave is sought to add entirely new claims, the court may grant leave to amend if the new claims are based on the same general set of facts, and the amendment will not prejudice the opposing party. (Austin v. Massachusetts Bonding & Ins. Co. (1961) 56 Cal.2d 596, 600-602; Glaser v. Meyers (1982) 137 Cal.App.3d 770, 777 [holding trial court did not abuse its discretion in permitting amendment of complaint, which originally alleged constructive eviction, to allege retaliatory eviction where the new claim was based on the same general set of facts].)

Although denial is rarely justified, a judge has discretion to deny leave to amend if the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party. (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530; Hirsu v. Superior Court (1981) 118 Cal.App.3d 486, 490). An opposing party is prejudiced where the amendment would necessitate a trial delay along with a loss of critical evidence, added preparation expense, increased burden of discovery, etc. (Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 486-488 [leave properly denied where plaintiff sought leave on the eve of trial, nearly two years after the complaint was originally filed and gave no explanation for the delay which prejudiced defendant who did not discover or depose many of the witnesses who would support the new allegations and had not marshaled evidence in opposition of the new allegations].)

Procedurally, a motion for leave to amend must state with particularity what allegations are to be amended. Namely, it must state what allegations in the previous pleading are proposed to be deleted and/or added, if any, and where, by page, paragraph, and line number. (CRC, Rule 3.1324(a)(2)-(3).) The motion must be accompanied by a declaration specifying: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (CRC, Rule 3.1324(b).) The motion must also be accompanied by the proposed amended pleading, numbered to differentiate it from the prior pleadings or amendments. (CRC, Rule 3.1324(a)(1).) It is within the court's discretion to require compliance with Rule 3.1324 before granting leave to amend. (Hataishi v. First American Home Buyers Protection Corp. (2014) 223 Cal.App.4th 1454, 1469.)

Analysis

Plaintiff 15515 Sunset Blvd, LLC

moves for leave to file the First Amended Complaint ("FAC").

Plaintiff's request for judicial

notice is GRANTED.

The motion substantively complies

with Rule 3.1324. Plaintiff provides a copy of the proposed pleading. Counsel

explains that substantial new facts have arisen since the filing of the

original Complaint on January 8, 2026, including the Board's June 23, 2026,

Rebuild Resolution, LADBS structural plan-check deficiencies obtained through a

Public Records Act request, the Board's documented statutory defaults under

Corporations Code §§ 7511(c) and 8333, and the Board's administration of a

contested director election while simultaneously proceeding to commit \$33.6

million in trust funds to reconstruction. (May Decl., ¶ 4.) The proposed FAC

seeks to challenge these new actions. The

facts arise from recent events, and Plaintiff promptly moved to amend on July

14, 2026. Thus, there is no substantial delay in bringing the proposed

amendments. Furthermore, no substantive prejudice is apparent from any

insubstantial delay. At best, Defendants note that there may be increased

discovery costs regarding the new causes of action. However, this is not the

type of substantive prejudice justifying denial of leave to amend. Defendants

also argue that the new causes of action will interfere with the Board's

governance and delay the fire recovery efforts. Of course, Plaintiff is

contending that the Board is conducting itself improperly, and attempts to

interfere with that improper conduct. The action would only truly interfere

with the Board's conduct if Plaintiff is successful in its challenges. The

truth of the challenges cannot be determined at this stage.

Otherwise, Defendants argue that leave

should be denied based upon futility. While the Court may deny leave to

amend for futility, and Defendants have raised potential concerns with the

newly pled causes of action, the Court does not find denial would be proper given

the liberality of leave. Defendants may make their objections to the pleading

or the merits of the case in the context of a procedurally proper motion. (See *Kittredge*

Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 [after leave

to amend is granted, the opposing party will have the opportunity to attack the

validity of the amended pleading].)

Accordingly, the motion is GRANTED. Plaintiff to file the proposed amended complaint by August 20, 2026.